CITATION TO DISCOVER ASSETS TO DEBTOR'S BANK

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____

County Where the Case Was Filed

Enter the case information as it appears on your other court documents.

PLAINTIFF: _____

Who started the case. *First, Middle, and Last Name, or Business Name*

DEFENDANT: _____

Who the case was filed against. *First, Middle, and Last Name*

RESPONDENT: _____

Bank. *Bank Name*

_____

Bank Street Address

_____

City *State* *Zip Code*

_____

Case Number

1. **This citation and notice is being sent to the bank and to the debtor because the creditor believes the bank has property belonging to the debtor listed below:**
   Enter the name and address of the debtor.

   _____

   Debtor's Name

   _____

   Street, Apt. # *City* *State* *Zip Code*

2. **A representative from the bank must fill out the attached *Answer to Citation Proceeding* on page 6.**

3. **Court Date Information**
   Information about getting a court date and how to attend is available from the Circuit Clerk. You can find their contact information at ilcourts.info/clerks.

   A. The next court date is:

   _____ at _____ ☐ a.m. ☐ p.m. in _____.

   Month, Day, Year *Time* *Courtroom Number*

   Court dates may be scheduled in-person, remotely, or a combination of in-person and remotely. Find out how your court date will be scheduled and provide that information here. Add the Clerk's phone number and website.

   B. Attend court any of the ways checked:

   ☐ **In person** at: _____

   Courtroom Address *Courtroom Number*

   ☐ **Remotely** (video or telephone option)

   By video conference at: _____

   Video Conference Website

   Log-in information: _____

   Video Conference Log-in Information, Meeting ID, Password, etc.

Case Number _____

By telephone at: _____

Call-in Number for Telephone Remote Appearance

To find out more about remote court options:

Phone: _____ or Website: _____

Circuit Clerk's Phone Number *Website URL*

Notice to Debtor

- IF YOU FAIL TO APPEAR IN COURT AT THE DATE AND TIME PROVIDED, YOU MAY LOSE THE RIGHT TO PROTECT MONEY IN A BANK, SAVINGS BANK, OR CREDIT UNION ACCOUNT AND OTHER ASSETS AND COULD BE SUBJECT TO ARREST AND IMPRISONMENT.
- If you go to court on the court date listed in section 3 you may be able to claim certain protections (exemptions) at that court date. For a list of exemptions see section 5 below. See *How to File an Emergency Motion to Claim Exemption* for information on how to file this *Motion*.
- If you need to go to court earlier than the court date listed in section 3, you can file an *Emergency Motion to Claim Exemption*.
- If you do not attend court and you have money in this bank, the court may turn your money over to the creditor.

Notice to Bank

- You are prohibited from making or allowing any transfer or other disposition of, or interfering with, any property not exempt from enforcement of a judgment, a deduction order or garnishment, property belonging to the judgment debtor or to which they may be entitled or which may thereafter be acquired by or become due to them, and from paying over or otherwise disposing of any monies not so exempt, which are due to the judgment debtor. This prohibition shall remain in effect until further order of court or termination of the proceeding. You are not required to withhold the payment of any monies beyond double the amount of the total sum due to the judgment creditor.
- If you do not answer or attend court on the date listed in section 3, the judge may do one of two things:
  - Enter a conditional judgment; OR
  - Issue a rule to show cause.
- **Warning**: If you fail to appear in court as directed in this notice, you may be arrested and brought before the court to answer to a charge of contempt of court, which may be punishable by imprisonment in the county jail.

4. The Bank's Duties and Obligations:

You must file the *Answer to Citation Proceeding* on page **6** telling the court about all accounts, property, or safety deposit boxes that the debtor may have an ownership interest in or appears as a signatory. You must not transfer (sell, give away or get rid of) any property not exempt from the enforcement of a judgment. This prohibition shall remain in effect until further order of the court or termination of the proceeding. The bank is required to withhold double the unpaid amount listed below in paragraph **6.** The bank is not required to withhold beyond double the unpaid amount listed below.

If the account consists solely of funds that can be identified as exempt under federal or state law, the bank is **prohibited** from withholding the funds, and the bank must respond that the funds are exempt. Deposited funds that are exempt under federal and state law include Social Security Disability Insurance (SSDI) and Social Security Retirement Insurance (SSRI), Supplemental Security Income (SSI), veteran's benefits, public assistance benefits, unemployment compensation benefits, child support, and/or circuit breaker property tax relief benefits.